

		have not had a reasonable opportunity to conduct discovery and prepare for trial, nor have the other parties had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new parties' involvement in the case. This is sufficient to show good cause. Defendant seeks to continue trial until April 5, 2027. Plaintiff has shown that it will be prejudiced by continuance until April 2027 since this action was filed in December 2022 and it was Defendants that failed to add and serve the additional indispensable parties until now. Further, Plaintiff contends that with each passing day, the defects at the property continue to worsen. Based on the foregoing, the Court will grant continuance until February 2027. Trial is CONTINUED to 2/12/27 at 9:00 a.m. in Dept. C32. Moving Defendant to give notice.
11.	KIM VS. TRAN 2026-01566561	MOTION TO CONSOLIDATE Plaintiff Harinne Kim's Motion is CONTINUED to 8/25/26 at 9:00 a.m., in Dept. C32. Plaintiff failed to comply with California Rules of Court, rule 3.350(a)(1)(A). Rule 3.350(a)(1)(A) is mandatory; thus Plaintiff is ORDERED to file a code compliant notice by August 14, 2026. The Court shortens the required notice period to seven (7) court days to accommodate the hearing date.
12.	WEBER VS. MORADO 2025-01511904	DEMURRER TO AMENDED CROSS-COMPLAINT Defendants/cross-complainants Corinne Morado, Gencare Connects, Inc., and Daian Corporation's Demurrer to Plaintiffs Rosalie Lu Weber and Rudolf Weber's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. <u>First Cause of Action for Breach of Contract</u> "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) Plaintiffs allege the parties entered into two stock sale agreements and Defendants breached those agreements, which resulted in damages to Plaintiffs. (FAC ¶¶ 97-103.) Plaintiffs also allege Defendants breached two separate oral agreements. (FAC ¶ 104.)

Defendants/cross-complainants contend Plaintiffs' allegations regarding any oral contracts are barred by the statute of frauds and conflict with the provisions of the written agreements.

A determination of whether the terms of the written agreements preclude any additional oral agreements is not appropriate for demurrer.

Moreover, "a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861 [citation omitted].)

Plaintiffs have sufficiently alleged its breach of contract cause of action with respect to the written agreements.

The Court OVERRULES the demurrer to the first cause of action.

Third Cause of Action for Fraud

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citations omitted].)

Fraud must be pleaded with specificity. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 [citation omitted].)

Plaintiffs allege:

- Prior to Weber entering into the Weber-GCI Stock Sale Agreement, Morado represented GCI would pay on the \$75,000 post-dated GCI Note Paydown Check required by the Weber-GCI Stock Sale Agreement. (FAC ¶ 110.)
- At the time Morado made the representation, she knew she could not and would not pay the \$75,000 post-dated GCI Note Paydown Check. (FAC ¶ 111.)
- Morado intended to induce Weber to enter into the Weber-GCI Stock Sale Agreement by making that representation and Weber believed Morado/GCI's representation was true. (FAC ¶¶ 110, 112.)
- In reliance on the representation, Weber entered into the Weber-GCI Stock Sale Agreement and provided and transferred a 50% interest in Daian Corporation worth at least \$350,000 to GCI. (FAC ¶¶ 113, 116.)
- Weber reasonably relied on Morado and GCI's representation as Morado has previously performed as Morado had represented under the Morado-Weber Stock Sale Agreement. (FAC ¶ 114.)

- If Weber had been aware that Morado/GCI's representation was untrue, Weber would not have entered into the Weber-GCI Stock Sale Agreement. (FAC ¶ 115.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the third cause of action.

Fourth Cause of Action for Violation of Penal Code Section 496

Penal Code section 496, subdivision (a) makes it a crime to knowingly receive, buy, sell, conceal, or withhold stolen property. Penal Code section 496, subdivision (c) authorizes an action for treble damages and attorney's fees for "[a]ny person who has been injured by a violation of subdivision (a) or (b)."

"To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond 'mere proof of nonperformance or actual falsity.' . . . This requirement prevents '[o]rdinary commercial defaults' from being transformed into a theft." (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 361-362 [citations omitted].) Acting with "careful planning and deliberation" may reflect the requisite criminal intent. (*See id.* at p. 362.)

While Plaintiffs allege Morado knew she could not pay the \$75,000 post-dated GCI Note Paydown Check (FAC ¶ 111), the Court does not find this demonstrates the requisite criminal intent required by Penal Code section 496.

The Court SUSTAINS the demurrer to the fourth cause of action with 20 days leave to amend.

Fifth Cause of Action for Violation of the Unfair Competition Law (UCL)

Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.) "By proscribing 'any unlawful' business practice, 'section 17200 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 "unlawful" violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

Plaintiffs allege Defendants violated "California Penal Code §§476, 476a, 496, California Civil Code §1719, California Civil Code §§ 1709 and 1710; Cal. Health and Saf. Code, § 1748(a); Cal. Code Regs. Title 22, §§ 74659, 74661, and 74663." (FAC ¶ 152.)

		Penal Code section 476a makes it a crime to willfully or with the intent to defraud make or deliver a check while knowing there are insufficient funds for its payment. As discussed above, Plaintiffs sufficiently alleged Morado represented GCI would pay on the \$75,000 post-dated check while knowing she could not and would not actually pay. (FAC ¶¶ 110, 111.) Plaintiffs allege Morado made these representations to induce Plaintiffs to enter into the Weber-GCI Stock Sale Agreement. (FAC ¶ 110.) Additionally, Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659 prohibit the operation of a hospice/home health agency without a license. Plaintiffs allege Morado did not change over the licensed ownership of PEC Hospice or PEC Healthcare and that those licenses were not transferable to Morado or GCI pursuant to California law. (FAC ¶¶ 72-75.) As such, Plaintiffs allege Morado and GCI have been operating PEC Hospice and PEC Healthcare without obtaining a license from the California Department of Public Health since at least 7/1/25. (FAC ¶ 77.) This is sufficient to allege a violation of Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659. The Court OVERRULES the demurrer to the fifth cause of action.
13.	BEEHIVE.COM, LLC VS. GLEISINGER 2023-01348798	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Joseph Allan Gleisinger’s Motion to Compel Compliance with Deposition Subpoenas is DENIED. On 4/22/25, the Court appointed a discovery referee regarding “all discovery disputes in this matter...” Defendant contends that, “A discovery referee’s role, if any, does not extend to adjudicating third-party subpoena enforcement” under Code of Civil Procedure section 1987.1.” (Motion, 1:15-16.) However, Defendant stated he “notified” the referee of this dispute in November 2025. (Id. at 3:25-28, Ex. F.) On 3/24/26, the Court granted Plaintiff’s motion to enforce the discovery referee order at risk of further sanctions if Defendant did not comply, but Defendant did not withdraw the present motion. Plaintiff opposes the motion on the grounds that, “Gleisinger offers no legal authority for this proposition or any legal authority that would undermine the Court’s Order Appointing Referee.” (Opp., 2:24-25.) Defendant requests sanctions of \$1,050.00 based on Gleisinger’s filing of the present motion in violation of the referee order, which has forced Plaintiff to expend 3 hours of attorney time at \$350/hour.